

# Sau. Manjiri Prashant Bhokardankar ... vs Dr. Prashant Sakharam Bhokardankar ... on 8 April, 2019

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY  
NAGPUR BENCH, NAGPUR

MISC. CIVIL APPLICATION (TRANSFER) NO. 28 OF 2019

Sau Manjiri Prashant Bhokardankar,  
(Shastri), Age 37 years, Occu: Household,  
R/o C/o Sau. Rekha Chepe,  
103, Shri Encleve Apartments,  
Near Dr. Nagalkar Hospital,  
Shankar Nagar, Amravati, Dist. Amravati.

....APPLICANT

...V E R S U S...

Dr. Prashant Sakharam Bhokardankar (Shastri)  
Age 41 years, C/o Shri Kalaskar, Chitrakut Colony,  
Pofale mala, Sadashankar Nagar, Sangamner,  
Tq.Sangamner, Dist. Ahmednagar.

.....NON-APPLICANT

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Shri D.P. Dapurkar, counsel for the applicant.  
None for the non-applicant.  
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CORAM: ARUN D. UPADHYE, J  
DATE: 08-04-2019.

ORAL JUDGMENT

1. Heard finally with the consent of learned counsel for the applicant. The matter is taken up for final hearing.

2. Admit.

3. Shri D.P. Dapurkar, learned counsel for the applicant/wife has submitted that non-applicant/husband has filed the proceedings under the Hindu Marriage Act for divorce before the Civil Judge, Senior Division, Sangamner. The applicant/wife is residing with her parents at Amravati. He also submitted that two proceedings were filed against her husband i.e. one is under Domestic Violence Act and another under Hindu Adoption and Maintenance Act and both the matters are disposed of and only recovery proceedings are pending. He further submitted that it is difficult for applicant to attend the proceedings at Sangamner which is more than 500 Km. He, therefore, prayed that the application be allowed.

4. After hearing learned counsel for the applicant, I have perused the application as well as documents filed on record. It appears that marriage of the applicant was solemnized with non-applicant on 17.11.2005 at Amravati as per Hindu Rites. After marriage, she cohabited with non-applicant at Sangamner. It appears that due to dispute with her husband started residing with her mother at Amravati. The non-applicant/husband has filed H.M.P. No. 310/2018 under Section 13(1) (ia) (ib) of the Hindu Marriage Act for divorce and same is pending before Civil Judge, Senior Division, Sangamner. It further appears that applicant has also filed Misc. Crim. Application No. 03/2019 before Judicial Magistrate First Class, Amravati and the same is pending. It further appears that the applicant is having two minor sons and residing with her mother. The distance between Amravati and Sangamner is more than 477 Kms by road.

5. After considering facts and circumstances of the case, I am of the view that the applicant has made out a case for transfer of proceedings filed by the her husband before Civil Judge, Senior Division, Sangamner for divorce. It is inconvenient for the applicant / wife to attend the said proceedings. The non- applicant inspite of the service not appeared in the proceedings. The Misc. Civil Application filed by the applicant/wife deserves to be allowed.

Hence, I pass following order:-

ORDER 1] Misc. Civil Application (Transfer) No. 28/2019 is hereby allowed.

2] The proceedings of H.M.P. No. 310/2018 [Dr. Shri Prashant Sakharam Bhokardankar (Shastri) V/s Dr. Sau. Manjiri Prashant Bhokardankar (Shastri)] pending before the Civil Judge, Senior Division, Sangamner stands transfer to the Court of Family Court, Amravati for disposal according to law.

3] No order as to costs.

JUDGE

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